NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

C.A.(CAA)-82/ND/2022

IN THE MATTER OF:

SCHEME OF ARRANGEMNT OF DEMERGER:
OF

IPE GLOBAL LIMITED
Registered office:
B-84, Defence Colony,
Bhishma Pitamah Marg,
New Delhi - 110024

... Applicant No.1 /Demerged Company

INTO

IPE GLOBAL VENTURES PRIVATE LIMITED
Registered office:
B-84, Defence Colony,
Bhishma Pitamah Marg,
New Delhi - 110024

... Applicant No.2 /Resulting Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 16.11.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)

SH. RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For Applicants : Adv. Rajeev Kumar

PATIBANDLA SATYANARAYANA PRASAD — Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 12:59:59 +05'30'

RAHUL PRASAD BHATNAGAR — Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:12:31 +05'30'

ORDER

PER – SHRI RAHUL BHATNAGAR, MEMBER (TECHNICAL)

Under consideration is the Joint Petition No. C.A.(CAA) 82/ND/2022 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with the requirement of convening and holding the meeting of Equity Shareholders, Secured Creditors in relation to the Demerged and Resultant Companies and Unsecured creditors in relation to Resultant Companies. To pass directions for calling and convening meetings of the Unsecured creditors of the Demerged Company. Thereafter for approval of the 'Scheme of Arrangement', which shall take effect from the Appointed Date of 01.04.2023.

2. That IPE Global Limited (hereinafter referred to as the "Demerged Company"), having CIN no. U74140DL1998PLC.97579 is a private limited company incorporated under the Erstwhile Companies Act, 1956 on 21.12.1998 under the name and style of 'Infrastructure Professional Enterprise Private Limited'. The registered office of the Demerged Company is situated at B-84, Defence Colony, Bhishma Pitamah Marg, New Delhi – 110024. The name of the Demerged Company was changed to IPE Global Private limited vide order dated 18.06.2012 in terms of Section 23(1) of the Companies Act. Thereafter again, on 08.09.2015, the Demerged Company got converted into a public company under

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:01:09 +05'30'
RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:12:59 +05'30'

the name and style of IPE Global Limited. The authorized share capital of the company as on date i.e., subsequent to 31.03.2021 is Rs.15,00,00,000 /- divided into 1,50,00,000 Equity shares of Rs.10 each and the Issued, Subscribed and Paid-up share Capital of the company as on date i.e., subsequent to 31.03.2021 is Rs.7,71,56,550/- divided into 77,15,655 Equity shares of Rs.10 each.

3. That IPE Global Ventures Private Limited (hereinafter referred as the "Resulting Company") having CIN no. U67190DL2022PTC393047 is a private limited company incorporated under the Companies Act, 2013 on 31.01.2022. The registered office of the Resulting Company is situated at B-84, Defence Colony, Bhishma Pitamah Marg, New Delhi - 110024. The authorised share capital of the company is Rs.1,00,000/- divided into 10,000 Equity shares of Rs.10 each and the Issued, Subscribed and Paid-up share Capital of the company is Rs.1,00,000 divided into 10,000 Equity shares of Rs.10 each.

4. That the present Petition has been jointly filed by the Demerged and the Resulting Company (together hereinafter they are referred as 'Applicant Companies'). The Registered offices of the Applicant Companies are situated in Delhi and therefore, the jurisdiction lies with this Bench.

5. It is seen from the record that the Board of Directors of the respective Applicant Company vide separate Board meetings held on 21.06.2022 and

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:01:20 +05'30'
RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:13:25 +05'30'

30.06.2022 respectively have unanimously approved the proposed 'Scheme of Arrangement'.

6. It is stated by the Applicant Company that the aforesaid Scheme of Demerger will result in the following advantages, which would be in the best interest of the shareholders, creditors and employees of both the Demerged and Resulting Companies:

a) *Focused business approach to the respective line/segment of business;*

b) *Benefit of financial resources, managerial, technical and marketing expertise;*

c) *Benefits of streamlining and rationalizing the group structure.*

7. That the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that no prosecution/ investigation/ inquiry under Companies Act 2013 is pending against either of the Applicant companies.

8. That the Applicant Company have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

9. That the Applicant Companies have filed their respective Memorandum of

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:01:31 +05'30'
RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:13:47 +05'30'

Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Audited Balance Sheets as on 31.03.2021 and provisional financial statements as on 31.03.2022.

10. That the position regarding Shareholders and Creditors and their Consent through Affidavits approving the Scheme of Demerger is summarized below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Secured Creditors	Consent given	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
IPE Global Limited (Demerged Company)	30	29 Shareholders having 99.9% in terms of value	Nil	N.A.	322	Not Obtained
IPE Global Ventures Private Limited (Resulting Company)	2	100%	Nil	N.A.	Nil	N.A.

11. **With respect to the Demerged Company, it is submitted in the joint petition that:**

a) It is having 30 equity shareholders, Certificate from Chartered Accountants certifying list of shareholders is annexed and all 30 equity shareholders holding 100% in value have given their respective consents

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:02:16 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:14:17 +05'30'

by way of affidavits which are annexed to the petition. Therefore, the requirement of convening/holding the Meetings of Shareholders in respect of the Demerged Company is dispensed with as prayed for in the joint petition.

b) It is further represented that the Company has nil secured creditor. Therefore, the necessity of convening and holding a meeting of Secured Creditors of the Demerged Company does not arise.

c) It is further stated that the company has 322 Unsecured Creditor. Certificate from Chartered Accountants certifying list of Unsecured Creditor is annexed to the petition.

Since the Unsecured creditors have not given consents to the scheme, therefore, the separate meeting of the unsecured creditors in respect of the demerged company shall be convened. That the details of the quorum of the meetings of the Unsecured Creditors of the demerged company is as follows:

Meeting	Total no. of Unsecured creditors	Quorum of the meeting
Unsecured Creditors of the demerged company	322	242

(i) The date of the meeting, mode, venue etc. of the meeting shall be decided by the chairperson in consultation with counsel for the petitioner companies.

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:02:28 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:14:41 +05'30'

(ii) If the quorum is not complete at the time of the meetings, the Chairman shall adjourn the meeting by 30 minutes, and the members present after 30 minutes shall be deemed to constitute the quorum for the said meetings.

(iii) Ms. Sumita Purkayastha former Member (T), NCLT having Email ID: roymitasu@gmail.com and Ph No.:9654485485 is appointed as **Chairperson,** CA, Mr. Pranshu Singhal, having Email ID: capranshusinghal@gmail.com and Ph No.: 9810263201 is appointed as Alternate Chairperson and Ms. Komal Gupta, Advocate having Email ID: komal1996231@gmail.com and Ph No.: 9810798653 is appointed as scrutinizer for the meetings of Unsecured creditors of demerged company.

(iv) The fees of the chairperson for the aforesaid meetings shall be Rs.75000/-. The fees of the Alternate Chairperson shall be Rs. 50,000/- and the Fees of the Scrutinizer shall be Rs. 40,000/- in addition to meeting their incidental expenses. The fees of chairperson, Alternate Chairperson and scrutinizer along with the travelling expenses and other out of pocket expenses shall be borne by the Applicant Companies. A copy of this order shall be provided to the ld. Counsel for the applicant companies who in turn shall provide a copy of the petition to the Chairperson, Alternate Chairperson and Scrutinizer.

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:03:14 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:15:07 +05'30'

(v) The notice of the above said meetings shall be sent by the Applicant Companies through registered post or courier or by email, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with the proposed scheme of amalgamation, copy of explanatory statement as required to be sent under the companies Act, 2013, the prescribed from of proxy and any other document as may be prescribed under the Act or rules. The guidelines for conducting meeting, as decided by the chairperson shall be clearly mentioned in the notice.

(vi) The Applicant Companies shall publish advertisement in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition) not less than 30 days before the aforesaid meetings.

(vii) The mode of Voting allowed on the proposed Scheme shall be decided by the chairperson in consultation with the counsel for petitioner company. The chairperson shall be responsible to report the result of the meeting within a period of 3 days of the date of the meeting with details of voting on the proposed Scheme.

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:03:32 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:16:04 +05'30'

12. That in accordance with Section 230(5) of the Companies Act, 2013, the Applicant Companies shall serve the notices of these meetings to the following Authorities, namely:

a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs,

b) Registrar of Companies (NCT of Delhi & Haryana), Ministry of Corporate Affairs,

c) Official Liquidator, attached to the Delhi High Court;

d) Jurisdictional Income Tax Authorities,

e) The Securities Exchange Board of India

f) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 30 days before the date fixed for meetings of Unsecured Creditors of the Demerged Company.

13. The authorities are directed to raise objection/representations, if any, within 30 days from the date of receipt of the Notice. In the event that no objection or representation is made within the stipulated timeframe, it shall be presumed that they do not have any objection.

14. The Chairman's Report shall be filed before this Tribunal within 7 days from the conclusion of this meeting.

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:05:22 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:16:54 +05'30'

15. With respect to the Resulting Company, it is submitted in the joint petition that:

a) It is having 2 equity shareholders, Certificate from Chartered Accountants certifying list of shareholders is annexed and both of them having 100% in value have given their respective consents by way of affidavits which are annexed to the petition. Therefore, the requirement of convening/holding the Meetings of Shareholders in respect of the Resulting Company is dispensed with as prayed for in the joint petition.

b) It is further represented that the Company has nil secured and unsecured creditors. Therefore, the necessity of convening and holding a meeting of secured and unsecured Creditors of the Resulting Company does not arise.

16. The Applicants have filed a copy of acknowledgment of in–principle approval application submitted to SEBI vide letter dated 23.05.2022, in relation to the proposed changes through the scheme of arrangement to be implemented in terms of the governing provisions of the Companies Act, 2013 read with rules thereunder, as stipulated under Regulation 20 of the AIF Regulations and SEBI circular ref. SEBI/HO/IMD-1/DF9/CIR/2022/032 dated 23.03.2022 with respect to changes in sponsor of the alternative investment funds (AIFs) and change in control of the AIF Investment Manager.

PATIBANDLA SATYANARAYANA PRASAD Digitally signed by PATIBANDLA SATYANARAYANA PRASAD Date: 2022.11.17 13:05:37 +05'30'

RAHUL PRASAD BHATNAGAR Digitally signed by RAHUL PRASAD BHATNAGAR Date: 2022.11.17 13:17:27 +05'30'

17. In terms of the above order the C.A.(CAA)/82/2022 first motion joint petition is allowed.

RAHUL PRASAD BHATNAGAR
Digitally signed by RAHUL PRASAD BHATNAGAR
Date: 2022.11.17 13:17:59 +05'30'

(RAHUL BHATNAGAR)
Member (T)

PATIBANDLA SATYANARAYANA PRASAD
Digitally signed by PATIBANDLA SATYANARAYANA PRASAD
Date: 2022.11.17 13:05:51 +05'30'

(P.S.N PRASAD)
Member (J)